

IN RE: COOK

CASE NUMBER: 26CV-0211052

Tentative Ruling on Petition for Change of Name: Petitioner Sereana Marie Cook seeks to change her name to Sereana Marie Plexi. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

GARCIA-BROWER VS. SHACK, INC.

CASE NUMBER: 25CV-0209453

Tentative Ruling on Order to Show Cause Re: Contempt for Respondent's Failure to Comply with Court's Order to Respond to Investigative Subpoena Issued by the Labor Commissioner: On May 26, 2026, the Court ordered Respondent Shack, Inc. to produce the documents requested in the subpoena issued by Petitioner Lilia Garcia-Brower, Labor Commissioner. The Court set the compliance date as June 26, 2026. There are Proofs of Service on file indicating that the Order was served on Respondent via its Agent for Service of Process, Daniel Lackmann with personal and service by mail on June 15, 2026. On July 6, 2026, Petitioner filed a Notice of Order to Show Cause Re: Contempt Hearing. A Proof of Service filed on July 28, 2026 indicates that substitute service was made on Daniel Lackmann on July 20, 2026, however, Item 5.b. is incomplete as the server did not indicate the name or description of the competent member of the household that the documents were left with. The attached document provides that the documents were left in the space on the front door handle then mailed to the Stallion Lane address and a PO Box.

The Court does not have a valid Proof of Service indicating that Respondent received proper notice of the Order to Show Cause Hearing. The Proof of Service does not reflect service by mail. The document attached to the Proof of Service is from Linda Field, Deputy Labor Commissioner I, however, it is not signed under penalty of perjury or otherwise verified. Therefore, it is not competent evidence that the documents were mailed to Respondent. The service described is not valid substitute service. Without proper notice to Respondent, the Order to Show Cause is dropped from calendar.

IN RE: INIQUEZ

CASE NUMBER: 26CV-0210941

Tentative Ruling on Petition for Change of Name: Petitioner Venancio Iniquez seeks to change his name to Venancio Iniquez-Darrough. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file. The Court notes that Petitioner's middle name was not included in the Order to Show Cause. Prior to executing the Decree Changing Name, Petitioner will need to clarify if he would like his middle name to be included in the Decree Changing Name.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b): Plaintiffs Tiffanie Jones, Kim Harmon and Stephen Huston seek relief pursuant to CCP § 473(b). Defendant Sally Taylor opposes the motion. The motion was originally on calendar on August 31, 2026. Defendant appeared and counsel argued that while he received the moving papers, they were served electronically and he had not consented to electronic service and that his office policy is to not accept electronic service. A represented party must accept electronic service. CCP § 1010.6(b)(2). However, in order to allow Defendant the opportunity to provide an Opposition, the Court continued the hearing to today and ordered that any Opposition be filed by September 11, 2026 and any reply be filed by September 16, 2026. Defendant filed an Opposition on September 10, 2026. Plaintiffs did not file a Reply.